

LAW OFFICE

September 18, 2025

Patrick Forelli
500 W Trade St #576
Charlotte, NC 28202

Re: Notice of Nuisance and Demand for Compliance with Georgia
Law and Savannah STVR Regulations
Property Address: 8611 Whitefield Ave, Savannah, GA 32406
Our Client: [REDACTED]
Our File Number: GA-TP8-VE3

Dear Mr. Forelli:

I represent [REDACTED] who resides at [REDACTED] Whitefield Avenue, directly adjacent to your short-term rental property located at 8611 Whitefield Avenue, Savannah, Georgia. This correspondence serves as formal notice of nuisance conditions created by the ongoing use of your property as an Airbnb rental.

As you are aware, there was a recent shooting incident at your property, which has heightened serious concerns regarding safety and the quiet enjoyment of neighboring residences. In fact, the gunfire from this incident resulted in **thirty-one (31) bullets striking [REDACTED] vehicle and residence, as well as the residence of the neighbor on the opposite side of your property. Disturbingly, one of these bullets entered that neighbor's home and struck the headboard of their bed while they were sleeping.** These circumstances illustrate the extreme danger and unreasonable interference created by your operation of this property as a short-term rental.

Pursuant to **O.C.G.A. § 41-1-1**, any activity that “causes hurt, inconvenience, or damage to another” constitutes a nuisance under Georgia law. The repeated disturbances, noise, trespassing, and disorderly conduct associated with the operation of your Airbnb have interfered with [REDACTED] right to the use and enjoyment of her property and therefore fall squarely within this statutory definition.

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Additionally, under **O.C.G.A. § 16-11-44** and related statutes, maintaining a disorderly house or allowing conduct involving illegal drugs or unlawful discharge of firearms may subject a property owner to civil liability and potential criminal consequences. Continued operation of your property in a manner that facilitates such activity places you at risk of nuisance abatement actions under **O.C.G.A. § 41-2-1 et seq.**, including injunctive relief, damages, and recovery of attorney's fees.

In view of the above and the recent violent incident, my client has directed me to place you on notice that there will be zero tolerance going forward for noise, trespassing onto her property, and any further disturbances originating from your guests. Accordingly, [REDACTED] respectfully requests that you immediately:

1. **Strictly comply with Airbnb's policies** by maintaining verified guest lists, enforcing quiet hours, and actively monitoring for noise, disorderly conduct, overcrowding, alcohol abuse, and illegal drug use.
2. **Require a minimum stay of three nights** for all bookings to discourage weekend-only party activity, as most infractions occur on Friday and Saturday nights.
3. **Procure and install volume monitoring devices** compatible with Airbnb, such as those available at <https://www.minut.com/airbnb>, to detect and address noise violations before they escalate into police or neighbor complaints.

Failure to take corrective action may leave [REDACTED] with no alternative but to seek remedies under Georgia law, which include filing a private nuisance lawsuit, pursuing damages for interference with her property rights, and requesting injunctive relief to abate the ongoing nuisance. She also reserves the right to report the matter to the City of Savannah and Chatham County authorities for code enforcement, zoning violations, and potential revocation of short-term rental licensing, if applicable.

We strongly encourage you to act promptly to bring your property into compliance and avoid the necessity of legal action. Please confirm in writing within ten (10) days the specific measures you will implement to prevent future disturbances.

Sincerely,

[REDACTED]

HMY/lbh

cc: [REDACTED]